

**CHAPTER 15.**

An Act to make provision for the honour and dignity of the Crown and the Royal Family, and for the payment of certain salaries, allowances and pensions; to enable His Majesty to assent to arrangements on behalf of any son of His Majesty being Duke of Cornwall for the payment of certain sums out of the revenues of the Duchy during the minority of the said Duke; and for purposes connected with the matters aforesaid. [21st May 1936.]

Most Gracious Sovereign,

**W**HEREAS Your Majesty has been graciously pleased to signify to Your faithful Commons in Parliament assembled that Your Majesty placed unreservedly at their disposal those hereditary revenues which were so placed by Your Predecessor, that Your Majesty desired that the contingency of Your Majesty's marriage should be taken into account, so that in that event there should be provision for Her Majesty the Queen, and for Members of Your Majesty's Family corresponding to the provision which the House of Commons have been willing to make in like circumstances in the past, and that your Majesty also desired that suitable provision should be made for His Royal Highness the Duke of York as the Heir Presumptive, and, in certain events, for His Royal Highness's family :

And whereas Your Majesty has further been graciously pleased to signify Your Majesty's intention, so long as the Duchy of Cornwall is vested in Your Majesty, to make the said provision for His Royal Highness the Duke of York, and, in so far as the revenues of the Duchy may be sufficient for the purpose, to provide for Your Majesty's Privy Purse :

Now, therefore, we, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, have freely and voluntarily resolved to make such provision as hereinafter appears

for the purposes aforesaid, and we do most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The hereditary revenues which were by section one of the Civil List Act, 1910, directed to be carried to and made part of the Consolidated Fund shall, during the present reign and a period of six months afterwards, be paid into the Exchequer, and be made part of the Consolidated Fund. Payment of hereditary revenues to the Exchequer. 10 Edw. 7. & 1 Geo. 5. c. 28.
2. There shall, during the present reign and a period of six months afterwards, be paid for the King's Civil List, the yearly sum of four hundred and ten thousand pounds : Annual payment for Civil List.
  - (a) in respect of any period during which His Majesty is unmarried, by forty thousand pounds per annum; and
  - (b) in respect of any period in the lifetime of His Royal Highness the Duke of York during which the Duchy of Cornwall is vested in His Majesty, by an annual amount equal to the sum by which the net revenues of the Duchy for the year exceed twenty-five thousand pounds; and
  - (c) in respect of any other period during which the Duchy of Cornwall is vested in His Majesty, by an annual amount equal to the net revenues of the Duchy for the year.

3.—(1) If His Majesty should marry, the following provisions of this section shall have effect. Provision for the Queen in the event of His Majesty marrying, and for His Majesty's family.

(2) There shall be paid to Her Majesty the Queen during her life, in the event of Her Majesty surviving His Majesty, the yearly sum of seventy thousand pounds.

(3) There shall be paid to the trustees hereinafter mentioned as a provision for the benefit of His Majesty's children (other than the Duke of Cornwall for the time

being) the yearly sum of ten thousand pounds in respect of each son (other than the Duke of Cornwall for the time being) who attains the age of twenty-one years, and a further yearly sum of fifteen thousand pounds in respect of each such son who marries, and a yearly sum of six thousand pounds in respect of each daughter who attains the age of twenty-one years or marries:

Provided that the sum payable in respect of any such son or daughter shall cease to be paid in the event of the death of that son or daughter.

(4) The trustees shall hold the sums paid to them under this section in trust for all or any one or more of the children of His Majesty (other than the Duke of Cornwall for the time being), in such shares, at such times, in such manner and subject to such conditions and powers of revocation (including, if it is thought fit, a condition against alienation), as His present Majesty may by order, countersigned by the First Commissioner of His Majesty's Treasury and the Chancellor of the Exchequer, appoint:

Provided that any such appointment may be varied by another order made and countersigned in like manner.

Provision  
for His  
Royal  
Highness  
the Duke of  
York and  
his family.

4.—(1) There shall be paid to His Royal Highness the Duke of York during his life the yearly sum of twenty-five thousand pounds:

Provided that in respect of any period during which the Duchy of Cornwall is vested in His Majesty, and any period during which the Duke of Cornwall for the time being is a minor, no payment shall be made unless the net revenues of the Duchy for the year fall short, as respects the first period, of twenty-five thousand pounds and, as respects the second period, of fifty thousand pounds, and in the event of such a deficiency the rate of the payment shall not exceed an amount per annum equal to the deficiency.

(2) In the event of His Royal Highness the Duke of York predeceasing His Majesty, there shall be paid to the trustees hereinafter mentioned as a provision for the benefit of Her Royal Highness the Duchess of York and the children of Their Royal Highnesses, in respect of any period during which one of the children of Their Royal Highnesses is the Heir Presumptive to the Throne, the yearly sum of twenty-five thousand pounds.

(3) The trustees shall hold the sums paid to them under this section in trust for Her Royal Highness the Duchess of York and all or any one or more of the said children, in such shares, at such times and in such manner, and subject to such conditions and powers of revocation (including, if it is thought fit, a condition against alienation), as His present Majesty may by order, countersigned by the First Commissioner of His Majesty's Treasury and the Chancellor of the Exchequer, appoint :

Provided that any such appointment may be varied by another order made and countersigned in like manner.

(4) The yearly sum to be paid to His Royal Highness the Duke of York under this section shall be in addition to any sum payable to His Royal Highness by virtue of the provisions of section five of the Civil List Act, 1910.

5.—(1) Notwithstanding anything in the *Duchy of Cornwall Management Acts, 1863 to 1893*, or in any other Act or rule of law, it shall be lawful for His Majesty by order, countersigned by the First Commissioner of His Majesty's Treasury and by the Chancellor of the Exchequer, to assent on behalf of any son of His Majesty being Duke of Cornwall to arrangements whereby during the minority of the said Duke the following payments may be made out of the net revenues of the Duchy, that is to say—

Power of His Majesty to assent to certain payments out of revenues of Duchy of Cornwall during minority of any future Duke of Cornwall, &c.

(a) a payment at the rate of twenty-five thousand pounds per annum to His Royal Highness the Duke of York, so, however, that the rate shall be reduced, in any year in which the net revenues of the Duchy fall short of fifty thousand pounds, by the amount of the deficiency; and

(b) a payment to the Exchequer at an annual rate computed in each year by applying to the net revenues of the Duchy for the year, reduced by any sum paid out of the revenues of the Duchy in respect of that year to His Royal Highness the Duke of York, the standard rate of income tax for the year of assessment in which that year ends and the higher rates of income tax for the preceding year of assessment which would be

applicable in the case of an individual having a total income equal to those net revenues so reduced; and

- (c) a payment at the rate of twenty-five thousand pounds per annum, to be applied in part for the purpose of the maintenance and education of the said Duke of Cornwall and in part for the purpose of paying sums to the trustees hereinafter mentioned to be accumulated by them for the purpose of making provision for any future wife of the said Duke :

Provided that if at any time the said payments would exceed in the aggregate the net revenues of the Duchy for the year, the payment to the Exchequer may, with the consent of the Treasury, be reduced by an amount not greater than the excess.

(2) The payment referred to in paragraph (c) of the last preceding subsection shall, save in so far as any part thereof is made to the trustees therein mentioned, be made to His Majesty as guardian of the Duke of Cornwall and shall be applied by His Majesty for the purposes of the maintenance and education of the said Duke in such manner as His Majesty shall think fit.

(3) The sums paid to the said trustees shall not be less than such sums as, in the opinion of the trustees, will, with the accumulations thereof, be sufficient to enable such provision as is specified in the next succeeding subsection to be made therefrom for a future wife of the said Duke, and shall, until in the opinion of the trustees sufficient money has been accumulated to enable that provision to be made, not be less than ten thousand pounds a year.

(4) If the said Duke marries, the trustees shall out of the income, and, to such extent as may in their opinion be necessary or expedient, out of the capital, of the moneys in their hands by virtue of the arrangements make the following provision for his wife, that is to say—

- (a) an income of ten thousand pounds a year during the joint lives of her and the said Duke,

- (b) an income of thirty thousand pounds a year, to commence on the death of the said Duke, for the remainder of her life,

and in particular, they may, if they think fit, make that provision in whole or in part by the purchase of an annuity or annuities for her from the National Debt Commissioners or otherwise:

Provided that, if the moneys in the hands of the trustees are not sufficient to enable the provision aforesaid to be made in full, the provision to be made for her during the life of the said Duke shall have the priority.

(5) On the death of the said Duke or his accession to the Throne any sums then in the hands of the trustees by virtue of the arrangements shall be paid to the Duchy of Cornwall and dealt with in like manner as gross sums of money received in respect of a sale of any of the possessions of the Duchy of Cornwall are to be dealt with under the Duchy of Cornwall Management Acts, 1863 to 1893:

Provided that on the death of the said Duke, the trustees shall retain such part of any moneys in their hands as aforesaid as may in their opinion be required for making such provision as aforesaid for any wife of his who survives him.

6. The persons who are for the time being the First Commissioner of His Majesty's Treasury, the Chancellor of the Exchequer, and the Keeper of His Majesty's Privy Purse shall be the Royal trustees for the purposes of this Act, and shall be a body corporate by that name, and any act of the trustees may be signified under the hands and seals of the persons who are trustees for the time being.

Constitution  
of Royal  
trustees.

7.—(1) In the application of the sum paid for the King's Civil List, the amounts specified in the Schedule to this Act shall be appropriated to the classes of expenditure specified therein respectively.

Appropriation of  
Civil List.

(2) If, at the end of any calendar year, the sum appropriated to any class of expenditure is not wholly required for expenditure of that class in that year, the

Treasury may direct that the amount not required be applied as an addition to the sum available for any other class.

Payments  
by Treasury  
in respect  
of retired  
allowances.

8.—(1) The Treasury may undertake the payment of any retired allowances granted, on a scale and in accordance with conditions approved by the Treasury, by His late Majesty or by His present Majesty to or in respect of persons who have been members of the Household of His late Majesty or of His present Majesty.

(2) Where the Treasury have under subsection (2) of section seven of the Civil List Act, 1910, undertaken the payment of part of any such allowance as is specified in subsection (1) of this section, they may, under the said subsection (1), undertake the payment of the whole of that allowance.

Provision as  
to certain  
officers of  
the House-  
hold.

9. The salaries of the Treasurer, the Comptroller and the Vice-Chamberlain of His Majesty's Household shall be paid out of moneys provided by Parliament as part of the expenses of the Treasury, and shall cease to be paid from the King's Civil List.

Meaning of  
"net  
revenues of  
Duchy of  
Cornwall".

10.—(1) For the purposes of this Act the expression "net revenues of the Duchy of Cornwall" means, in relation to any year, the sum certified in respect of each year by the joint certificate of the auditor of the Duchy and the auditor of the Civil List to be the surplus in that year of the receipts of the Duchy on revenue account over payments on revenue account.

(2) In determining for the purposes of this section what receipts and payments are to be taken to be receipts and payments on revenue account, the two auditors shall follow the ordinary practice of the Duchy as existing immediately before the commencement of this Act, and shall include in their certificate a statement that they have complied with the provisions of this subsection.

Charge of  
payments  
under this  
Act.

11. The sums required under this Act for the King's Civil List, and for the provision, in the event of the marriage of His Majesty, for Her Majesty the Queen and for His Majesty's children, and for the provision under section four of this Act for His Royal Highness the

Duke of York and for His Royal Highness's family, and for the payment of the retired allowances payable by the Treasury under this Act, and for the payment of Civil List pensions (whether granted before or after the passing of this Act), shall be charged on and paid out of the Consolidated Fund or the growing produce thereof, and shall be paid at such times and in such manner as the Treasury may direct; and, in particular, effect shall be given to the reductions required by this Act to be made in the sums payable as aforesaid, at such times and in such manner as the Treasury may direct.

**12.** Where any of the yearly payments, or any of the reductions of the yearly payments, mentioned in this Act fall to be made in respect only of a part of a year, such adjustments of and in relation to those payments and reductions shall be made as may in the circumstances of the case appear to the Treasury to be required.

Adjustments in respect of parts of years.

**13.**—(1) Sections five and six of the Civil List Act, 1837, which relate to Civil List pensions, shall continue to apply during the present reign and a period of six months afterwards, but Civil List pensions shall not be granted as chargeable on the sum paid for the Civil List.

Continuance of enactments, commencement, repeal and short title.

1 & 2 Vict. c. 2.

(2) The Civil List Audit Act, 1816, and all other enactments relating to the Civil List of His late Majesty, and not hereby superseded or expressly repealed, shall continue to apply to the Civil List under this Act, and nothing in this Act shall affect any rights or powers for the time being exercisable with respect to any of the hereditary revenues which are by this Act directed to be paid into the Exchequer.

56 Geo. 3. c. 46.

(3) Sections one, two, four, six, and nine (with the exception of subsection (5) of section nine), of the Civil List Act, 1910, are hereby repealed, and the provisions made by this Act shall be in substitution for the provisions made by the enactments hereby repealed.

(4) This Act shall take effect as from the last demise of the Crown, and such adjustments shall be made as appear to the Treasury necessary for the giving effect to this subsection:

Provided that the sums payable under this Act for the King's Civil List in respect of the period between His present Majesty's accession to the Throne and the thirty-first day of March, nineteen hundred and thirty-six, shall be in addition to the sum issued in that period for the King's Civil List under the Civil List Act, 1910, for expenditure on works.

(5) This Act may be cited as the Civil List Act, 1936.

## Section 7.

## SCHEDULE.

| Classes of Expenditure.                                         | Sum appropriated.               |                               |
|-----------------------------------------------------------------|---------------------------------|-------------------------------|
|                                                                 | While His Majesty is unmarried. | While His Majesty is married. |
| I. His Majesty's Privy Purse -                                  | £ 77,000                        | £ 110,000                     |
| II. Salaries of His Majesty's Household and Retired Allowances. | 127,000                         | 134,000                       |
| III. Expenses of His Majesty's Household.                       | 152,800                         | 152,800                       |
| IV. Royal bounty, alms and special services.                    | 13,200                          | 13,200                        |
| Total - - -                                                     | 370,000                         | 410,000                       |

*Note.*—Effect shall be given to the reductions in the total of the Civil List which are under this Act to be made in respect of periods during which the Duchy of Cornwall is vested in His Majesty, by reducing, in the first place, the appropriations for the expenditure of Class I, and then (if and so far as may be necessary) the appropriations for the expenditure of Class II.